Defects liability period, a guide for homeowners

What is the defects liability period?

The defects liability period (DLP) is a set time after practical completion during which your builder must fix defects in the building work. It is a standard part of most residential building contracts and protects you as the owner.

When does it start?

It starts on the date of practical completion (PC): the date your builder formally notifies you that the work is complete enough for you to move in and use the home. Minor items still outstanding at PC are listed and fixed during the DLP.

How long does it last?

Your contract sets the period. Many residential contracts use 13 weeks (about 3 months) from practical completion; some use 6 or 12 months. Check the contract schedule.

What is a defect?

Work that doesn't meet the standard required by the contract, the National Construction Code (NCC), the Australian Standards or the manufacturer's instructions. Examples:

- Cracking beyond acceptable tolerances
- Peeling or blistering paint
- Doors or windows that don't close properly
- Leaking taps or pipes
- Cracked or uneven tiles
- Drainage problems
- Incomplete or missing work

What is not a defect?

- Normal building movement and minor shrinkage cracks, especially in the first 12 months
- Wear and tear, damage caused by the owner, and problems from lack of maintenance
- Natural movement of timber, minor colour variation in natural materials, and condensation

How do I report a defect?

Tell your builder in writing as soon as you notice it, with:

- A clear description of the issue and where it is in the home
- Photos, if possible
- The date you noticed it

Email is usually best, because it gives you both a record.

What happens next?

Your builder will inspect the items, confirm which are defects under the contract, and arrange for them to be fixed within a reasonable time. Allow time for trades and materials to be organised.

Statutory warranties

Separately from the DLP, state home building laws give you statutory warranties that last for years after completion. Often there is a longer period for major or structural defects than for other defects (in NSW, for example, 6 years for major defects and 2 years for other defects). The periods and definitions differ by state: ask your builder, or check with the state building regulator.

If the builder doesn't fix a defect

Talk to your builder first, and keep everything in writing. If that doesn't resolve it, contact the building dispute service or regulator in your state:

State	Where to go
NSW	NSW Fair Trading (Building Commission NSW)
VIC	Building and Plumbing Commission (replaced the Victorian Building Authority in 2025)
QLD	Queensland Building and Construction Commission (QBCC)
WA	Building and Energy
SA	Consumer and Business Services
TAS	Consumer, Building and Occupational Services (CBOS)
ACT	Access Canberra
NT	NT Building Advisory Services

Key dates

Milestone	Date
Practical completion	
Defects liability period ends	
Statutory warranty (major defects) ends	
Statutory warranty (other defects) ends	

This is general information only and isn't legal advice. Your contract and your state's legislation set out your rights and obligations.